

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

Phyllis Marie Crowder-Kester

Plaintiff/Petitioner

Vs

Cause # CV2016-422W

Matthew Oliver Reardon

Defendant/Respondent/Movant

Motion for Dismissal or in the alternative for Recusal (2nd Request)

Comes now before this court, MATTHEW REARDON, the Defendant/Movant and requests this court reconsider, vacate its prior order, and dismiss the petitioner's petition with prejudice. Movant affirms that he has continued to sustain repetitive injuries at the baseless, frivolous, and vindictive hands of the petitioner and the petitioner's legal counsel placing movant in distress due to actions, assertions, and through its latest order a presumption of guilt regarding a highly contested event that occurred and is currently open and has yet to be tried or adjudicated. In doing so has all but directly challenged the jurisdictional venue of where the currently open matter is to be tried and in doing so has created what Movant best describes as yet another Constitutional Crisis in assisting and enabling the plaintiff in the commission of her crimes in allowing the same answers and repeated claims by Defendant go unanswered and unchecked., Movant asserts his position that the combined help in this immoral plot has escalated it into one that Movant strongly believes meets the criteria for Child Exploitation to improperly influence and manipulate legal proceedings with an end result of ridding a caring and supportive father from his minor child's life by ways of extortion and exploitation and continued unjustified withholding the child from her father, in further violation of a standing visitation order, and stating events that occurred AFTER petitioner was already in contempt of the visitation order to begin with, further suggesting the direct plausible possibility, particularly based on past history, that the event occurring post-contemptuous action could have been manufactured by the petitioner in one way or another if not all.

IN SUPPORT THEREOF MOVANT WOULD PRESENT THE FOLLOWING FACTS AND SUPPORTIVE REASONING WHICH WOULD SUPPORT DEFENDANT IN THIS PRESENT CAUSE MOVING TO DISMISS AND FOR THIS COURT TO RULE UPON AT ITS EARLIEST CONVENIENCE AND AWARD/DECLARE THE EMERGENCY RELIEF AS REQUESTED AND FOR THE REASONS STATED:

RULE 1.09 NOTIFICATION OF RELEVANT PENDING CASES

“When counsel in a cause is aware of a case pending in another court of this or any other state or federal jurisdiction, which likely may affect the subject matter or jurisdiction of the cause pending in the Chancery Court, such counsel shall immediately notify the Chancery Court by written notice docketed for such other cause.

The Plaintiff and her counsel have not only failed, but have contumaciously failed to comply with this crucial rule of the UNIFORM CHANCERY COURT RULES, and in the act of concealing their already contumacious acts have now seemingly convinced this court to challenge the jurisdiction of nearly every item on trial in Lafayette County Justice Court two separate times, thus subjecting Defendant in both venues to Double Jeopardy. This Amounts to a clear violation of Defendants constitutional rights, both State and Federal; and a open refusal of his due process rights by asserting his guilt and making him prove his innocence, while by every definition exploiting the Defendant and in so doing, exploiting the minor child.

Voluntary dismissal is allowed under M.R.C.P. 41 at any time prior to service by the adverse party of an answer or summary judgment, when a civil case is so dismissed and then refiled immediately thereafter with no substantial change in the parties or claims, such practice, as an example, may be taken as a willful violation of this rule. Willful violation of this rule may constitute an offense subject to suspension and other discipline under Rule 3.4(c) of the Rules of Professional Conduct. Sanctions authorized by this rule are cumulative to discipline under the Rules of Professional Conduct.

RULE 2.02 PLEADINGS MUST BE FILED BEFORE PRESENTED

All pleadings, accounts and other papers in any action shall be filed with the Clerk of the proper Court before being presented to the Chancellor. If to do so would inflict undue hardship on the attorney, or in emergency matters, the papers may be presented to the Chancellor and marked filed by him as provided in M.R.C.P. 5(e). Thereafter, the said papers shall be forthwith transmitted by the attorney to the proper Clerk

IN MULTIPLE INSTANCES BY MOTION BEFORE THIS COURT, MOVANT RAISED LARGE GRIEVANCES ABOUT THE FACT THAT ORDERS INCLUDING AGREED TO ORDERS WERE GENERATED, ADJUDGED, AND FILED WITH THE OPPOSING COUNSEL SIGNATURE AND THE JUDGES SIGNATURE, YET UNSIGNED BY MOVANT THROUGH NO REFUSAL TO SIGN BY MOVANT.

RULE 2.03 NO BLANKS IN PLEADINGS addresses this error, which to this day has remained raised via multiple filed documents and motions with this court, yet remains unaddressed and now manifest error

RULE 2.03 of the Uniform Chancery Court Rules States the following:

“No blanks shall be contained in any pleading.”

RULE 2.06 BLANKS IN PLEADINGS MUST BE FILLED IN

All blanks contained in any pleading must be properly filled in according to the fact or facts before being filed with the clerk or presented for consideration by the Court or Chancellor. If the pleader

does not know, and is unable to learn, the necessary fact or facts to enable him to fill in such blanks accurately, he must so state in his pleading

RULE 1.11 MOTIONS FOR RECUSAL OF JUDGES

Any party may move for the recusal of a judge of the chancery court if it appears that the judge's impartiality might be questioned by a reasonable person knowing all the circumstances, or for other grounds provided in the Code of Judicial Conduct or otherwise as provided by law. A motion seeking recusal shall be filed with an affidavit of the party or the party's attorney setting forth the factual basis underlying the asserted grounds for recusal and declaring that the motion is filed in good faith and that the affiant truly believes the facts underlying the grounds stated to be true. Such motion shall, in the first instance, be filed with the judge who is the subject of the motion within 30 days following notification to the parties of the name of the judge assigned to the case; or, if it is based upon facts which could not reasonably have been known to the filing party within such time, it shall be filed within 30 days after the filing party could reasonably discover the facts underlying the grounds asserted. The subject judge shall consider and rule on the motion within 30 days of the filing of the motion, with hearing if necessary. If a hearing is held, it shall be on the record in open court. The denial of a motion to recuse is subject to review by the Supreme Court on motion of the party filing the motion as provided in M.R.A.P. 48B.

UNDER THE MISSISSIPPI RULES OF CRIMINAL PROCEDURE Defendant now faces Double Jeopardy based on the same set of facts asserted and forcing the Defendant to waive his Fourth Amendment Right and in doing so forgo his fifth amendment right against self-

incrimination by ordering Defendant to prove his innocence and give evidence to the State, or forgo visitation with his minor child. Undeserved exploitation of the minor child, by way of making a presumably innocent man and father whom has ongoing matters involving alleged civil rights violations, choose between protecting his civil rights seemingly further under siege or surrender his rights in an apparent barter for due time with his minor child specified out in the current child visitation agreement with which is further supported by his continued compliance with child support obligations continuously being paid to petitioner pursuant to the current child support agreement and subsequent withholding order. The purposes served by Rule 2.2 are in accord with Mississippi law and the mandates of the Fourth Amendment to the United States Constitution. As the United States Supreme Court stated in *Giordenello v. United States*, 357 U.S. 480, 78 S. Ct. 1245, 2 L. Ed. 2d 1503 (1958): **The Judge should not accept without question the affiant's mere conclusion that the person whose arrest is sought has committed a crime"**

While being civil in nature and filed in chancery court, the matter first and foremost is one that was brought and proper in the justice court of Lafayette County. Thus defendant feels it is proper in this case to consider Mississippi rules of criminal procedure being that it involves a currently open and now highly interconnected and intertwined conflict before the justice court of Lafayette county between the plaintiff and defendant and the prior order given by this court subjects movant/defendant to double jeopardy along with deprivation of key due process rights. **Thus subject to 1.06(b) decisions regarding this type of matter and its assignment shall be subject to review by the supreme court under M.R.A.P. 21, and appropriate stays shall be entered by the trial court to allow such review.**

RULE 1.06 OF THE UNIFORM CHANCERY COURT RULES DISCUSSES

**ASSIGNMENT OF CASES WHERE THERE MAY BE A CONFLICT OR
CHALLENGE OF JURISDICTION**

- (A) *In multi-judge districts and courts, all civil cases shall be assigned immediately on the filing of the complaint by such method which shall insure that the assignment shall be random, that no discernable pattern of assignment exists, and that no person shall know to whom the case will be assigned until it has been assigned. If an attorney or party shall attempt to manipulate or defeat the purpose of this rule, the case shall be reassigned to the judge who would have otherwise received the assignment. If the judge who would have received the case under an assignment in compliance with this rule cannot be determined, a new assignment in compliance with the rule shall be made, excluding the judge to whom it was incorrectly assigned. Sanctions, including costs and attorney's fees, may be imposed by that judge on reassignment. Such sanctions may also include suspension from practice in the court imposing them for not more than 30 days and referral to the Bar for further discipline.*
- (B) *Decisions regarding this rule shall be subject to review by the Supreme Court under M.R.A.P. 21, and appropriate stays shall be entered by the trial court to allow such review.*
- (C) *In districts where motion days are set in advance with judges specifically assigned, preliminary procedural matters and those matters enumerated under M.R.C.P. 81(d)(1) and (2) may be submitted to the judge assigned such duties, notwithstanding the fact that the case has been assigned to another judge. Furthermore, by local rule approved by the Supreme Court, the trial court may make special provisions accommodating local needs of economy and efficiency which might otherwise be at variance with this rule.*

Movant states that he has continued to raise the same grievances about the plaintiff continuously going on hiatus in withholding the minor child against all pre-dated signed orders before this court. Movant states that each motion brought before this court has been prejudicially ignored with preferential treatment shown to the petitioner time after time despite the fact that petitioner

has had a history of filing false reports and making the most bizarre, heinous, and defaming claims despite the fact that she is the one that has manufactured nearly every “crisis” brought before this court which she claimed justified intentionally withholding and depriving the defendant/respondent of his minor child, and doing so on her own weeks if not months (as demonstrated) before ever noticing this court or filing any petition seeking to suspend visitation. Defendant/Movant would state this type of methodology would amount to a certain abhorrent miscarriage of the judicial system where long established jurisprudence should always condemn and deter. Yet this court has failed to ever do so much as even address this grievance and instead has been allowing plaintiff to get away with this act each time despite her well documented history of making false reports, reporting false crimes, and stating false claims

Movant asserts and affirms through multiple recent examples including this cause that there has been a clearly shown lack of adherence and care to the equal protections under the laws which are afforded to all citizens under the Fourteenth Amendment to The United States Constitution. A system designed to provide due process and one that should stay uninfluenceable and non-biased would appear to have drifted away from acceptable norms that would garner and keep the trust of citizens now is clouded with uncertainty, all appearances of influence controlled, and quite frankly has gone on tilt, continuously spiraling further and further out of control. This type morally incomprehensible behavior is one that will almost certainly lead to the decay and destruction of our society and most certainly the removal of the expectation of equality, fairness, and protections under the laws that are supposed to be guaranteed to all United States Citizens. As a Marine Corps Veteran, Movant harshly condemns this abominable treatment, and would further state that this complete usurping and allowing of the other party to dictate conditions and orders contrary to her being in gross and willful contempt of the standing order prior.

WHEREFORE ALL PREMISES CONSIDERED

Movant submits his grievances against this court, the opposing party, and would move this court to reconsider its most recently entered order for the meritorious reasons listed, further dismissing in whole the plaintiff's complaint and ordering immediate compliance without further delay to the standing visitation agreement predating the order entered on September 14, 2021. In the alternative movant requests that the Chancery Judge recuse himself from this matter due to the stated concerns listed, further allowing movant to proceed with appeal as a right and allowing Defendant/Movant to proceed on appeal to the Mississippi Supreme Court for further interpretation of the rights and laws Movant feels this court is in direct violation of. Movant believes given the aforementioned facts stated that Dismissal of the Petitioner's original petition most certainly is warranted. Due to a jurisdictional challenge subjecting Defendant/Movant to Double Jeopardy, Movant submits a second copy of this motion to the Justice Court of Lafayette County seeking dismissal of all contested matters, and for valid reason would formally request a continuance of the matters in Justice Court until either the continuance hindering visitation with the minor child has been lifted, or a time when the Mississippi Supreme Court has had opportunity to review and rule on this matter. Movant/Defendant would tentatively move to continue all Lafayette County Justice Court Matters to a suitable day on or after January 12, 2022, the date set in the order of continuance for Lafayette County Chancery Court. Movant asserts that his statements have been given freely and voluntarily, given under penalty of perjury for false statements, and movant further asserts that he has provided all factual knowledge to the best of his ability.

Movant also prays for any other special or general relief to which he may be entitled.

Respectfully Submitted This 28th Day of September 2021

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Respondent/Defendant/Movant
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